(C-11289)

PIKE NATIONAL FOREST

SIXTH PRINCIPAL MERIDIAN

Lake George Administrative Site

T. 12 S., R. 71 W.,
Sec. 29, S½SE¼SE¼, S½N½SE¼SE¼.

The area described contains 30 acres in Park County.

2. Public Land Order No. 1659 of June 17, 1958, withdrawing national forest land for a recreation area and guard and ranger stations is hereby revoked so far as it affects the following described lands:

(C-11290)

WHITE RIVER NATIONAL FOREST

SIXTH PRINCIPAL MERIDIAN

Minturn Ranger Station

T. 5 S., R. 81 W.,
Sec. 36, lots 15, 16, 17, and 18.

The area described aggregates approximately 173.36 acres in Eagle County.

3. The land described in paragraph 1 of this order shall immediately be made available for consummation of a pending Forest Service exchange. The land described in paragraph 2 shall be open at 10 a.m. on November 13, 1970, to such forms of disposition or use as may by law be made of national forest lands subject to valid existing rights, except that the rights to all of the minerals in the land are owned by the State of Colorado and the land is not subject to disposition under the U.S. mining laws, or leasing under the mineral leasing laws.

HARRISON LOESCH,
Assistant Secretary of the Interior.

OCTOBER 8, 1970.

[F.R. Doc. 70-13774; Filed, Oct. 13, 1970; 8:46 a.m.]

[Public Land Order 4920]

[Riverside 2767, 2768]

CALIFORNIA

Partial Revocation of Public Water Reserve No. 22, and Stock Driveway No. 235, California No. 17

By virtue of the authority vested in the President by section 1 of the Act of June 25, 1910, 36 Stat. 847, 43 U.S.C. sec. 141 (1964), the authority contained in section 10 of the Act of December 29, 1916, 39 Stat. 865, as amended, 43 U.S.C. sec. 300 (1964), and pursuant to Executive Order No. 10355 of May 26, 1952 (17 F.R. 4831), it is ordered as follows:

1. The Executive order of August 8, 1914, creating Public Water Reserve No. 22, is hereby revoked so far as it affects the following described land:

(Riverside 2767)

MOUNT DIABLO MERIDIAN

T. 29 S., R. 37 E.,
Sec. 35, S½NE¼.

The lands described aggregate approximately 80 acres in Kern County.

2. The departmental order of January 21, 1933, creating Stock Driveway Withdrawal No. 235, California No. 17, is hereby revoked so far as it affects the following described lands:

(Riverside 2768)

MOUNT DIABLO MERIDIAN

T. 29 S., R. 37 E.,
Sec. 21, lot 16;
Sec. 28, lots 1, 8, 9, and 16.
T. 30 S., R. 37 E.,
Sec. 4, lot 5, SE¼NE¼, E½SE¼;
Sec. 10, W½NW¼;
Sec. 15, SE¼NW¼.

The lands described aggregate approximately 492.19 acres in Kern County.

3. None of the lands described above shall be open to disposition under the public land laws generally until an appropriate classification order is issued by an authorized officer of the Bureau of Land Management.

The lands described in paragraph 1 of this order have been and continue to be open to applications and offers under the mineral leasing laws, and to location under the U.S. mining laws for metalliferous minerals. These lands will be open to location under the mining laws for nonmetalliferous minerals at 10 a.m. on November 13, 1970.

The lands described in paragraph 2 of this order are open to applications and offers under the mineral leasing laws, and to location and entry under the U.S. mining laws.

Inquiries concerning the lands should be addressed to the Manager, Riverside District and Land Office, Bureau of Land Management, Riverside, Calif. 92502.

HARRISON LOESCH,
Assistant Secretary of the Interior.

OCTOBER 8, 1970.

[F.R. Doc. 70-13775; Filed, Oct. 13, 1970; 8:46 a.m.]

Title 49—TRANSPORTATION

Chapter X—Interstate Commerce Commission

SUBCHAPTER A—GENERAL RULES AND REGULATIONS

[7th Rev. S.O. 1041]

PART 1033—CAR SERVICE

Distribution of Boxcars

At a session of the Interstate Commerce Commission, Railroad Service Board, held in Washington, D.C., on the 7th day of October 1970.

It appearing, that an acute shortage of certain plain boxcars exists on the railroads named in paragraph (a)(1) herein; that shippers located on the lines of these carriers are being deprived of such cars required for loading, resulting in a severe emergency and causing grain elevators to be unable to accept newly harvested grain grain, or to store grain on the ground, thus creating economic loss; that present rules, regulations, and practices with respect to the use, supply, control, movement, distribution, exchange, interchange, and return of boxcars owned by these railroads are ineffective. It is the opinion of the Commission that an emergency exists requiring immediate action to promote car service in the interest of the public and the commerce of the people. Accordingly, the Commission finds that notice and public procedure are impracticable and contrary to the public interest, and that good cause exists for making this order effective upon less than 30 days' notice.

It is ordered, That:

§ 1033.1041 Service Order No. 1041.

(a) *Distribution of boxcars.* Each common carrier by railroad subject to the Interstate Commerce Act shall observe, enforce, and obey the following rules, regulations, and practices with respect to its car service:

(1) Return to owners empty, except as otherwise authorized in subparagraphs (2) and (4) of this paragraph, all plain boxcars which are listed in the registration of the specific railroads named herein in the Official Railway Equipment Register, ICC RER 376, issued by E. J. McFarland, or successive issues thereof, as having mechanical designation XM, with inside length 44 feet 6 inches or less and equipped with doors less than 9 feet wide and bearing the identification marks shown:

The Atchison, Topeka and Santa Fe Railway Co. identification marks—ATSF.
Burlington Northern Inc., identification marks—BN, CBQ, GN, NP, SPS.
Chicago, Rock Island and Pacific Railroad Co. identification marks—RI.
Chicago and North Western Railway Co. identification marks—CNW, CMO, MSTL, CGW.
Chicago, Milwaukee, St. Paul and Pacific Railroad Co. identification marks—MILW.
Illinois Central Railroad Co. identification marks—IC.
Missouri-Kansas-Texas Railroad Co. identification marks—MKT.
Missouri Pacific Railroad Co. identification marks—MP.

(2) Except as otherwise provided in subparagraph (4) of this paragraph, boxcars described in subparagraph (1) of this paragraph may be loaded to stations on the lines of the owning railroad, or to any other station which is closer to the owner than the station at which loaded. After unloading at a junction with the car owner, such cars shall be delivered to the car owner at that junction, either loaded or empty.

(3) Boxcars described in subparagraph (1) of this paragraph shall not be back-hauled empty from a junction with the car owner.

(4) Boxcars described in subparagraph (1) of this paragraph located at a point other than a junction with the car owner shall not be back-hauled empty, except for the purpose of loading to a junction with the car owner or to a station on the lines of the car owner.

(5) The return to the owner of a boxcar described in subparagraph (1) of this paragraph shall be accomplished when it is delivered to the car owner, either empty, or loaded as authorized by subparagraph (2) or (4) of this paragraph, at a junction with the car owner.

(6) Junction points with the car owner shall be those listed by the car owner